

Building (Ventilating Systems) Regulations
(Cap. 123 sub. leg. J)

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Building (Ventilating Systems) Regulations

(Cap. 123, section 38)

[23 October 1964]

(Format changes—E.R. 2 of 2021)

1. Citation

These regulations may be cited as the Building (Ventilating Systems) Regulations.

2. Interpretation

In these regulations, unless the context otherwise requires—

Director (處長) means the Director of Fire Services.

3. Ventilating systems to which regulations apply

- (1) Save as provided in paragraph (2) of this regulation and in regulation 7, these regulations shall apply to every ventilating system that embodies the use of ducting or trunking, which passes through any wall, floor or ceiling of the building in which the ventilating system is installed, from one compartment of such building to another.
- (2) These regulations shall not apply to any ventilating system in buildings which are scheduled premises for the purposes of the Public Health and Municipal Services Ordinance (Cap. 132). *(10 of 1986 s. 32(1))*

4. Requirements with respect to ventilating systems

- (1) Save as provided in paragraph (2) of this regulation and in regulation 7, every ventilating system, to which

these regulations apply, shall comply with the following provisions—

- (a) all moving parts thereof shall be securely fenced;
- (b) every part thereof shall be accessible for the purposes of inspection, and, in particular—
 - (i) the spindle of every fan shall be so sited that its guard may be removed and a tachometer applied thereto; and
 - (ii) every air intake and exhaust shall be accessible for the purposes of measurement;
- (c) no air intake for the ventilating system shall be sited in any place—
 - (i) which in the opinion of the Director constitutes a fire hazard; or
 - (ii) where waste or rubbish is likely to accumulate;
- (d) the opening of every air intake shall be fitted with a screen constructed of corrosion-resistant material having a mesh not greater than 12 mm; (*L.N. 294 of 1976*)
- (e) every duct shall—
 - (i) be wholly constructed of non-combustible material having a strength and durability not less than that of galvanized sheet-iron or steel;
 - (ii) be accessible for the purposes of cleaning throughout its entire length;
 - (iii) (*Repealed L.N. 7 of 2020*)
 - (iv) at the point where it passes through any floor, wall or ceiling, be fitted with a damper which shall be operated by fusible links of a type approved by the Director, and designed to operate up to a temperature of 69°C., and be so constructed or

protected as to resist the action of fire for a period not less than the period for which the floor, wall or ceiling through which it passes is designed to resist the action of fire; (*L.N. 294 of 1976; L.N. 235 of 1982*)

- (f) no duct shall serve more than one building;
 - (g) every filter shall be wholly constructed of non-combustible material, other than steel wool; and
 - (h) every electrostatic filter or precipitator shall be of a type approved by the Director.
- (2) Where he thinks fit and subject to such conditions as he may specify, the Director may by notice in writing exempt any ventilating system in respect of which application in writing in that behalf is made from compliance with all or any of the provisions of paragraph (1).

5. Duty of owners of ventilating systems

- (1) The owner of any building in which there is installed a ventilating system to which these regulations apply shall—
- (a) keep such ventilating system in safe and efficient working order at all times; and
 - (b) cause every damper, filter and precipitator in such ventilating system to be inspected by a registered specialist contractor in the appropriate category at intervals not exceeding 12 months. (*L.N. 362 of 1980; L.N. 517 of 1997*)
- (2) Any person who contravenes paragraph (1) shall be guilty of an offence and shall be liable on conviction to a fine at level 1. (*E.R. 2 of 2021*)

(*L.N. 60 of 1971*)

5A. Issue of certificates by registered specialist contractors

- (1) A registered specialist contractor in the appropriate category who inspects any ventilating system shall within 14 days of such inspection issue to the person on whose instructions the inspection was carried out a certificate and send a copy thereof to the Director. *(L.N. 517 of 1997)*
- (2) A certificate issued under paragraph (1) shall state—
 - (a) the address at which the inspection was carried out;
 - (b) whether or not the dampers, filters and precipitators are in safe and efficient working order; and
 - (c) the name and address of the registered specialist contractor in the appropriate category who carried out the inspection. *(L.N. 517 of 1997)*
- (3) Any person who—
 - (a) contravenes paragraph (1); or
 - (b) makes or causes to be made in a certificate issued under paragraph (1) a statement which he knows or reasonably ought to know to be false in a material particular,shall be guilty of an offence and shall be liable on conviction to a fine at level 1 and to imprisonment for 6 months. *(E.R. 2 of 2021)*

(L.N. 60 of 1971)

6. Power of authorized officer

For the purposes of these regulations, any officer of the Fire Services Department authorized in writing by the Director may carry out such tests of any ventilating system to which these regulations apply, as may be necessary to ascertain whether or not the same is in safe and efficient working order.

7. Existing ventilating systems

Where a ventilating system to which these regulations apply has been installed in any building before the commencement* of these regulations there shall be no requirement to comply with the provisions of regulation 4 unless and until—

- (a) the ventilating system has been removed or is altered in any way; or
- (b) the Director is of the opinion that the ventilating system constitutes a fire hazard.

Editorial Note:

* Commencement date: 23 October 1964.